

An Act

ENROLLED SENATE
BILL NO. 2112

By: Murdock of the Senate

and

Worthen and Newton of the
House

An Act relating to open pasture roads; amending Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp. 2025, Section 116), which relates to open pasture road designations; modifying definition; modifying requirements for designation of an open pasture road; removing certain time limitation; granting certain authority to boards of county commissioners; updating statutory language; and providing an effective date.

SUBJECT: Open pasture roads

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp. 2025, Section 116), is amended to read as follows:

Section 116. A. As used in this section:

1. "Cattle crossing signage" means a sign in a ~~twenty-four (24)-inch~~ twenty-four-inch diamond shape that depicts a black cow graphic on a yellow background; and

2. "Open pasture road" means a road maintained by a county ~~where the~~ where the land on both sides of the road is owned or leased by the same owner or lessee and ~~a~~ such roadway is without fencing.

B. Any public road, as defined in Section 232 of Title 69 of the Oklahoma Statutes, in whole or in part, that is maintained by a

county and that meets the following conditions ~~by November 1, 2025,~~ shall be designated as an open pasture road:

1. Cattle guards have been installed at the access points of such road or part thereof; and

2. ~~The land on either side of the road or part thereof to be designated is owned by a single party; and~~

3. ~~There is no fencing erected on such land on either side of the road~~ Cattle are allowed to be unrestrained or to run at large through such roads.

It shall be the responsibility of the property owner to notify the board of county commissioners that the roadway is eligible to be designated as an open pasture road. Such notification shall state the proposed action and clearly show on a map the location and terminals of the road. The map shall also demonstrate that the property where the road is located belongs to the property owner requesting such designation.

C. The board of county commissioners shall cause the erection of cattle crossing signage at the terminals of the open pasture road. The cost associated with such signage shall be provided by the property owner requesting such designation.

D. Neither the property owner nor the owner of livestock that are on property where an open pasture road is located shall be liable for damages to any motor vehicle or occupants thereof caused by collision with livestock on a designated open pasture road.

E. ~~Only a public road meeting the requirements of subsection B of this section on November 1, 2025, may be designated as an open pasture road. After such date, even if conditions on a property change to meet the requirements of subsection B of this section, such property may not be designated as~~ The board of county commissioners shall have authority to designate an open pasture road.

F. Once annually, the owner of a property where an open pasture road is located shall provide notice to the board of county commissioners demonstrating that the property continues to meet the

requirements of subsection B of this section. Such notice shall also include an indication that the property owner desires such designation to continue. If such property owner indicates that ~~they~~ the owner no longer ~~desire~~ desires for such designation to continue, or if the notice demonstrates that the property no longer meets any of the conditions required by subsection B of this section, the road shall lose the designation and the owner of such property shall have thirty (30) days after the board of county commissioners receives such notice to ensure any livestock on the property are fenced out of the roadway.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____